

Act shall not apply, and any prison so discontinued shall be sold or otherwise disposed of as the Secretary of State, with the consent of the Treasury, may direct.

2.—(1) Section thirty of the Prisons (Scotland) Act, 1877 (which relates to the legalising of police cells as places of detention), shall be amended by the substitution of the words “thirty days” for the words “fourteen days.”

Amendment
of 40 & 41
Vict. c. 53.
s. 30.

(2) For the purposes of the said section, the county council of Orkney and the county council of Zetland shall be deemed to be the police authorities of the said counties respectively (inclusive of any burghs situate therein except the burgh of Lerwick): Provided always that it shall be the duty of the Prison Commissioners for Scotland to make such arrangements as may be necessary for the removal of any prisoners confined in police cells in either of the said counties legalised under the said section.

3. This Act may be cited as the Prisons (Scotland) Act, 1926, and this Act and the Prisons (Scotland) Acts, 1860 to 1909, may be cited as the Prisons (Scotland) Acts, 1860 to 1926.

Citation.

CHAPTER 58.

An Act to increase and extend the powers of the court to inflict penal servitude in lieu of imprisonment in the case of certain crimes.

[15th December 1926.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Where a person is convicted on indictment of two or more offences to which this Act applies in respect of which he is liable to be sentenced to terms of imprisonment amounting in the aggregate to a period of not less than three years, the court may, instead of sentencing him to imprisonment, sentence him to penal

Power of
court to
substitute
penal servi-
tude for
consecutive
terms of

imprison-
ment.

servitude for any term not exceeding the aggregate period for which he might have been sentenced to imprisonment, so, however, that no sentence of penal servitude imposed under this section shall be for a term exceeding seven years :

Provided that, if, on an appeal by a person sentenced under this Act to penal servitude in respect of two or more offences with which he was charged on separate indictments, it appears to the Court of Criminal Appeal that the appellant, though not properly convicted on some indictment, has been properly convicted on some other indictment, the Court shall have the like powers as if the appellant had been convicted of the offences on different counts or parts of the same indictment ; but where an appellant convicted of two or more offences, whether on one or more indictments, has been sentenced under this Act to penal servitude in respect of two or more offences and his conviction of any such offence is quashed by the Court of Criminal Appeal, the Court shall not affirm any sentence passed at the trial or pass any sentence in substitution therefor which is more severe than would have been warranted by law if the appellant had been acquitted at the trial of any charge in respect of which his conviction is quashed.

(2) This Act applies to all indictable offences not otherwise punishable by penal servitude except blasphemous or seditious libel and other offences of blasphemy or sedition, unlawful assembly, rout or riot, offences under any enactment relating to corrupt and illegal practices at elections, and offences of inciting or attempting or conspiring to commit any such offence as aforesaid.

(3) In the application of subsection (1) of this section to Scotland

(a) the expression “ the court ” shall mean the High Court of Justiciary, and the power to award penal servitude conferred by that subsection shall be exerciseable in the case of a person remitted to the said High Court for sentence under the Criminal Procedure (Scotland) Acts, 1887 and 1921, as well as in the case of a person convicted before the said High Court ;

(b) a reference to the Court of Criminal Appeal shall be construed as a reference to the High Court of Justiciary in the exercise of its jurisdiction under the Criminal Appeal (Scotland) Act, 1926.

16 & 17
Geo. 5. c. 15.

2.—(1) This Act may be cited as the Penal Servitude Act, 1926.

Short title
and extent

(2) This Act shall not extend to Northern Ireland.

CHAPTER 59.

An Act to amend the law relating to coroners.

[15th December 1926.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Qualification, Appointment, and Resignation of Coroners.

1.—(1) From and after the commencement of this Act no person shall be qualified to be appointed to be a coroner for a county (in this Act referred to as “a county coroner”) or a coroner of a borough (in this Act referred to as “a borough coroner”), or a deputy or assistant deputy to a county or borough coroner, unless he is a barrister, solicitor, or legally qualified medical practitioner, of not less than five years standing in his profession :

Qualifica-
tions and
disqualifica-
tions.

Provided that no person who at the commencement of this Act is, and for a period of not less than five years has been, a franchise coroner or a deputy to a county coroner or to a borough coroner shall by reason of the foregoing provision be disqualified from being appointed to be a county or borough coroner.

(2) A person shall, so long as he is a mayor, alderman or councillor of a county or borough and for six months after he ceases to be a mayor, alderman or councillor thereof, be disqualified for being a coroner appointed by the council of that county or borough or by a joint committee of which any of the members are appointed